

this understanding is incorrect, this order is void. In the future, please pay greater attention to the contents and clarity of your proof of service.

Additionally, it appears that a future case management conference date was not ordered on May 13, 2026. The parties are noticed that a case management conference two is scheduled for **October 15, 2026 at 8:30**. Updated CMC statements shall be filed 15 days in advance. The parties were previously ordered to submit a stipulated discovery schedule. Plaintiff is tasked with taking the lead and preparing a joint stipulated discovery schedule to be filed by September 21, 2026.

Prevailing party to prepare the order after hearing and submit directly to the court and is excused from complying with California Rules of Court, rule 3.1312.

BROWN v. FSL MAGNOLIA COURT, LLC, et al.
Case No. CU24-04807

Motion by Defendants to Strike Class Claims

TENTATIVE RULING

Defendants motion to strike the class claims is DENIED.

Defendant brings this motion pursuant to California Rules of Court, rule 3.767(a)(3) to challenge the ability of Plaintiff to serve as a representative in this action given that she has a separate suit alleging discrimination that has been removed to federal court.

CRC 3.1322(a) requires that a notice of motion to strike quote completely in numbered fashion the parts of the pleading the motion seeks to strike.

Contents of notice A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively.

Defendants' notice does not quote any of the "class claims" the motion seeks to strike. It does not even identify the proper pleading from which it seeks to strike them (referring to the "Complaint", not the currently operative first amended complaint).

CRC §3.1322(b) requires a motion to strike to be made by the time of answer.

Timing A notice of motion to strike must be given within the time allowed to plead, and if a demurrer is interposed, concurrently therewith, and must be noticed for hearing and heard at the same time as the demurrer.

Defendants' answer was filed in September 2024, 21 months before this motion to strike was filed.

A motion for judgment on the pleadings can be filed after the time to respond to a pleading has passed, but only if it attacks an entire cause of action, not just parts of one. 1 Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2026) §7:295, pp. 96-97.

To the extent that Defendant moves to challenge the class on the basis of inadequate representative pursuant to California Rules of court, rule 3.767, in general, courts decide adequate representation issues later in the case, on a motion by the plaintiff for certification of the class. (See, e.g., *Payton v. CSI Electrical Contractors, Inc.* (2018) 27 Cal.App.5th 832; *Linder v. Thrifty Oil Co.* (2000) 23 Cal.4th 429, 440 [trial court retains discretion to hear merit based challenge to class action before or after class certification initiated].)

Pleading motions are also generally disfavored in class action cases, although in unusual circumstances they can be proper when the requirements for class certification are clearly not met by the plead allegations. (*Shaw v. Los Angeles Unified School Dist.* (2023) 95 Cal.App.5th 740, 760-761; see also *Canon U.S.A., Inc. v. Superior Court* (1990) 68 Cal.App.4th 1, 4-5 [trial court in an appropriate case can strike all class action allegations in an action filed in California seeking to certify a nationwide class when to do so would require the trial court to adjudicate issues by application of numerous different rules of law from the various states].)

There have been a few reported cases where a named plaintiff's assertion of both class action and individual claims in the *same* case were found at the class certification motion stage to make that plaintiff inadequate to serve as a proper class representative. *Payton, supra*, 27 Cal.App.5th 832; *De La Cueva v. Alta Dena Certified Dairy, LLC* (C.D.Cal. 2013) 2013 U.S.Dist.LEXIS 198734. Neither case is on point here. It is not an uncommon practice for an individual to bring a lawsuit alleging discrimination claims and to separately bring an individual and representative action alleging wage and hour claims.

In general, a conflict of interest must go to the very heart of the class action claim to serve as a ground for disqualifying a named plaintiff from being certified as a class representative.

"It is axiomatic that a putative representative cannot adequately protect the class if his interests are antagonistic to or in conflict with the objectives of those he purports to represent. But only a conflict that goes to the very subject matter of the litigation will defeat a party's claim of representative status. (*Richmond v. Dart Industries, Inc.* (1981) 29 Cal.3d 462, 470 [quoting 7 Wright & Miller, Federal Practice and Procedure (19720 Civil, §1768, pp. 638-639].)

In a situation where the individual claims are filed and/or pursued in a different case and court from the class action claims, the potential conflict of interest is decidedly more theoretical than concrete.

Thus, for both procedural defects and on the merits, the court denies this motion in its entirety.

TARA CRUZ v. CARVANA, LLC et al.
Case No. CU25-05498

GM's Demurrer to Second Amended Complaint

TENTATIVE RULING

The Court, on its own motion, continues the matter to August 14, 2026 at 9:00 a.m. in Department 8. Parties are reminded to check the tentative ruling system the day prior to the hearing.

CROWN ASSET MANAGEMENT v. WADE PRITCHARD
Case No. CU25-06184

Motion to Set Aside and Vacate Default and Default Judgment

TENTATIVE RULING:

Parties to appear. Moving party failed to include notice regarding the court's tentative ruling system as required by Local Rule 3.9 (d).

Defendant WADE PRITCHARD's motion to set aside or vacate the default and default judgment entered May 8, 2026, is GRANTED due to mistake, inadvertence or excusable neglect.

This suit was served on October 28, 2025.

PRITCHARD is reminded that if he is representing himself, he is held to the same standard as an attorney.

Defendant shall file a responsive pleading within 20 calendar days. Should PRITCHARD fail to do so, Plaintiff is directed to perfect a second default. The court will not be setting aside a second default.

DEMETRIO RINCON TORRES et al. v. UOB of VACAVILLE, LLC., et al
Case No. CU25-07125

Motion to Compel Arbitration and Stay or Dismiss Proceedings

TENTATIVE RULING:

Parties to appear.

In its previously posted TR, the court provided: